

25STCV22910 25STCV22910

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-07-30

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C309%2C07%2F30%2F2026

Source SHA-256: 40de867b6385cee10ba817fe59f9419e1e50d67257d3cc1ac8c5f0eafc596277

Case Number: 25STCV22910 Hearing Date: July 30, 2026 Dept: 309

Superior Court of California

County of Los

Angeles

DEPARTMENT 17

TENTATIVE RULING

MATTHEW MASSMAN, et al.

vs.

6122 WILSHIRE BOULEVARD PROPERTY

Case

No.: 25STCV22910

Hearing Date: July 30, 2026

Plaintiffs'

motion to compel Tanya Hakim's deposition is GRANTED. Within 5 days of entry of this order, Defendant is to provide a list of 3 available dates for Ms. Hakim's deposition to take place within 30 days. The Court declines to award sanctions at this time.

On 8/4/2025,

Plaintiffs Matthew and Marissa Long (collectively, Plaintiffs) filed suit

against 6122 Wilshire Boulevard Property (6122 or Defendant), alleging: (1) breach of contract; (2) breach of warranty of habitability; (3) breach of statutory warranty of habitability; (4) breach of the covenant of quiet enjoyment; and (5) private nuisance.

On 4/8/2026,
Plaintiffs moved to compel the deposition of Tanya Hakim.

Discussion

Plaintiffs
move to compel the in-person deposition of Tanya Hakim, agent for the managing partner of Defendant.

In
opposition, Defendant indicates that it “[h]as agreed to produce Ms. Hakim for deposition on numerous occasions, provided dates to Plaintiffs’ counsel for the deposition, and will produce Ms. Hakim in Irvine, as requested by Plaintiffs. There is no issue as to whether the deposition can be taken, where it is to be taken, or the scope of the deposition.” (Opp., 3: 9-13.)

The
Court finds that inadequate meet and confer efforts were undertaken by Plaintiffs to schedule Ms. Hakim’s deposition without Court interference. As a result, the Court declines to award sanctions at this time, but the grants the motion to ensure Ms. Hakim’s timely deposition.

Based on the
foregoing, Plaintiffs’ motion to compel Tanya Hakim’s deposition is granted. Within 5 days of entry of this order, Defendant is to provide a list of 3 available dates for Ms. Hakim’s deposition which is to take place within 30 days. The Court declines to award sanctions at this time.

It is so ordered.

Dated: July
, 2026

Hon. Jon R.
Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must send an email to the court at by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.

Superior Court of California

County of Los
Angeles

DEPARTMENT 309

TENTATIVE RULING

MATTHEW MASSMAN, et al.

vs.

6122 WILSHIRE BOULEVARD PROPERTY

Case
No.: 25STCV22910

Hearing Date: July 30, 2026

Plaintiff's
motion to compel further responses from Defendant to his Form Interrogatories (Set One) is DENIED. Accordingly, the Court declines to award sanctions at this

time.

On 8/4/2025,
Plaintiffs Matthew and Marissa Long (collectively, Plaintiffs) filed suit against 6122 Wilshire Boulevard Property (6122), alleging: (1) breach of contract; (2) breach of warranty of habitability; (3) breach of statutory warranty of habitability; (4) breach of the covenant of quiet enjoyment; and (5) private nuisance.

Now,
Plaintiff Matthew Massman (Plaintiff) moves to compel further responses from Defendant to his Form Interrogatories (Set One).

Discussion

On 1/8/2026,
Plaintiff and his co-plaintiff Marissa Long (Ms. Long) (collectively Plaintiffs) each propounded discovery request on Defendant. (Illya Decl., ¶ 2.) The requests included a total of 226 Special Interrogatories, 40 Requests for Production, 118 Requests for Admission, as well as Form Interrogatories. (Illya Decl., ¶ 3.) Each of Plaintiffs' requests were duplicative of the other's. (Illya Decl., ¶ 4.) Defendant served responses to this discovery on 2/24/2026. (Illya Decl., ¶ 5.)

Plaintiffs'
counsel sent a meet and confer at the close of business on 3/30/2026, stating that Defendant had until 4/3/2026, to amend responses or else Plaintiffs would "have no choice but to file their respective motions...". As such, Defendant was provided only four days to review and amend its responses.

After
review, the Court finds Plaintiff did not engage in a meaningful effort to resolve the dispute informally, and thus
has not met the meet and confer requirement. (See CCP § 2016.040.)

Based
on the foregoing, Plaintiff's motion to compel further discovery is denied.

It is so ordered.

Dated: July
, 2026

Hon. Jon R.
Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must send an email to the court at by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.